

Forensic Judgment Analysis — Decision 12 — Set-Aside Dismissed — Logic Model Applied

*Option B — Finding by Finding — MacDonald J, 8 May 2025 — Ex
Tempore*

Case references

BV20D01752 | Family Division — Set-Aside Dismissed (Ex Tempore)

Nadia Zahmoul

Litigant in Person

3 April 2026

Veritas Numquam Perit

PREAMBLE

This document applies the master logical structure (Option A) to the May 2025 judgment paragraph by paragraph. Every premise is grounded in a named, dated, locatable primary source. No editorial conclusion is stated. The reader is invited to test each premise independently.

Four tags apply:

- **FABRICATED** — finding made without evidential basis or contradicted by the record
- **MISCHARACTERISED** — court answered a different question than the one before it
- **SUPPRESSED** — material evidence or pending application not referenced
- **UNSUPPORTED** — conclusion asserted without adequate reasoning

Three master rules apply: the **Disability Rule**; the **Procedural Void Rule**; the **Compounding Rule**. Each is applied where conditions are met.

SECTION 1 — STRUCTURAL CONTEXT

What was formally before MacDonald J on 8 May 2025

1. Wife's D11 to set aside — filed 12 February 2025.
2. Husband's application to sign property transfer documents under paragraph 27(g) of the final order.
3. Husband's application for Decree Absolute — dated 26 March 2025.
4. Wife's application for adjournment — filed at 12:41am on the morning of the hearing.
5. Dr Leigh Poyser's letter dated 26 March 2025 — in the papers, before the court.
6. Wife's recusal application — filed from 10 February 2025, repeatedly and daily. Never listed. Never determined.

Source: Judgment paras 12, 20, 21; Dr Poyser letter 26 Mar 2025; recusal chronology from NZ emails 6–8 May 2025; Peter Cobourn / Master Meacher email 10 Jun 2025.

NZ was absent. KZ appeared in person. Judgment delivered ex tempore. The court relied on written documents only.

Source: Judgment cover page: "MRS ZAHMOUL was not in attendance".

FINDING 1 — PARA 2 — 'ACTIVELY FRUSTRATED'

What the judgment says

> "the wife has actively frustrated the implementation of the order across a period of over a year."

>

> Judgment para 2

Chain 1 — The Disability Rule

- **IF** D (autism/PTSD) is a lifelong neurodevelopmental condition — confirmed by CLAAS 20 June 2025
- **AND** CLAAS states: "*Nadia was born with this condition... will continue to be autistic for the rest of her life*"
- **AND** CLAAS states: "*Without appropriate support for her autistic communication, Nadia struggles to effectively share information and engage in interactive settings*"
- **AND** CLAAS states: participation measures had been "*withdrawn despite the negotiation phase continuing to place significant demands on her*"
- **AND** Dr Poyser's letter (26 Mar 2025) is before the court — documents mental health crisis, difficulty processing proceedings, live autism query
- **AND** Para 2 attributes the word "*actively*" — imputing volition and deliberate choice — to non-implementation
- **AND** The judgment does not reference Dr Poyser's letter in the context of para 2
- **AND** The judgment does not reference the clinical explanation for NZ's conduct at any point in 68 paragraphs
- **THEN** The attribution of active frustration to conduct with a documented clinical explanation is not supported by engagement with that explanation
- **THEREFORE** Para 2 is **MISCHARACTERISED** — deliberate intent attributed to conduct with a documented neurological basis without engaging that basis.

Source: CLAAS letter 20 Jun 2025; CLAAS assessment 1 Jul 2025; Dr Poyser letter 26 Mar 2025.

Chain 2 — The MPS causal chain

- **IF** The final order requires NZ to cooperate with property transfers
- **AND** Cooperation required legal representation; legal representation required financial resources
- **AND** MPS (£18,762/month) was the mechanism providing those resources
- **AND** KZ was in breach of MPS from February 2024 onwards
- **AND** No enforcement action was taken by the court on NZ's D50K application
- **AND** NZ lost legal representation in February 2024 as a direct consequence
- **AND** Para 2 characterises non-cooperation as frustration without engaging this causal chain

- **THEN** The characterisation of "*active frustration*" treats as wilful a failure causally connected to the other party's breach and the court's non-enforcement
- **THEREFORE** Para 2 is **UNSUPPORTED** — the reasoning does not engage the causal chain between MPS breach, loss of representation, and non-implementation.

Source: EWFC 79 para 5 (MPS order); D50K enforcement application; MPS breach notification emails.

TAG APPLIED: MISCHARACTERISED + UNSUPPORTED

FINDING 2 — PARAS 21-22 — DR POYSER'S LETTER

What the judgment says

> "at no point does the treating psychiatrist suggest in the letter dated 26 March 2025, that the wife is not fit to attend the hearing, but rather states... 'we would like to enquire if there is an advocacy service or any other appropriate support that can be made available'"

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> Judgment para 22

Chain 1 — Misreading of the letter

- **IF** Dr Poyser's letter dated 26 March 2025 is before the court
- **AND** The letter states NZ is under CRHTT care due to a mental health crisis
- **AND** The letter states NZ has "*significant levels of agitation and poor sleep exacerbated by the stress of her current court case*"
- **AND** The letter states NZ has "*great difficulty processing certain aspects of the proceedings*"
- **AND** The letter raises a live autism query: "*due to meet our psychologists soon in response to a query regarding whether she may exhibit symptoms of autism*"
- **AND** The letter asks whether advocacy support can be made available — it does not confirm NZ can attend without support
- **AND** MacDonald J reads the letter as confirming NZ is able to attend — treating the advocacy request as evidence of fitness
- **AND** The letter does not say NZ can attend — it asks what support would enable her to attend
- **THEN** The court read as a confirmation of fitness what was a request for the preconditions of fitness to be established
- **THEREFORE** Para 22 treatment of Dr Poyser's letter is **MISCHARACTERISED** — the court answered the wrong question.

Source: Dr Poyser letter 26 Mar 2025 — full text.

Chain 2 — Part 3A duty triggered and not discharged

- **IF** FPR Part 3A and PD 3AA impose a duty to consider participation measures when a vulnerability is identified
- **AND** Dr Poyser's letter identifies a live vulnerability: active mental health crisis, autism query, difficulty processing proceedings
- **AND** Dr Poyser's letter specifically asks the court what advocacy support can be made available
- **AND** No Part 3A assessment is recorded for the 8 May 2025 hearing
- **AND** No advocacy support inquiry is recorded
- **AND** No participation direction is made before proceeding in NZ's absence
- **THEN** The duty under Part 3A was triggered by the letter and was not discharged before or at the hearing
- **THEREFORE** Para 22 is **UNSUPPORTED** — the court did not discharge the statutory duty triggered by the letter before concluding NZ chose not to attend.

Source: Dr Poyser letter 26 Mar 2025; FPR Part 3A; PD 3AA; judgment paras 22, 36, 37.

Chain 3 — The Disability Rule applied to the letter

- **IF** Dr Poyser's letter (26 Mar 2025) raises autism as a live clinical query
- **AND** CLAAS assessment (15 May 2025 — seven days after this hearing) confirmed lifelong autism
- **AND** CLAAS: "*Nadia was born with this condition*"
- **AND** Therefore: autism existed at the date of the letter and at the date of the hearing — the letter was not raising a possibility but identifying an unconfirmed existing condition
- **AND** The court proceeded without inquiring into the status of the autism query
- **THEN** The court made findings about NZ's capacity and intent without having established the clinical basis of her conduct
- **THEREFORE** The Disability Rule applies: conduct attributed to deliberate choice was, at the time of attribution, the subject of a documented clinical query that the court did not pursue.

Source: Dr Poyser letter 26 Mar 2025; CLAAS assessment 1 Jul 2025; CLAAS letter 20 Jun 2025.

MASTER RULE: IF D (disability) exists as a lifelong condition AND clinical notice of D was before the court AND the court attributed intent to conduct consistent with D without engaging D THEN the finding of intent is made on a false premise.

TAG APPLIED: MISCHARACTERISED + UNSUPPORTED

FINDING 3 — PARA 39 — 'DELIBERATELY OBSTRUCTIVE BEHAVIOUR'

What the judgment says

> *"the wife's very late application to adjourn this hearing stands at the end of a very long line of what I am satisfied is deliberately obstructive behaviour, designed to hinder the implementation of the final order"*

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> Judgment para 39

Chain 1 — Intent attributed without clinical engagement

- **IF** Para 39 attributes deliberate obstruction to NZ's conduct — *"deliberately"* imputes conscious intent
- **AND** Dr Poyser's letter (26 Mar 2025) is before the court and documents mental health crisis, agitation, poor sleep, difficulty processing proceedings, autism query
- **AND** The judgment does not reference Dr Poyser's letter in the context of para 39
- **AND** The judgment does not consider whether the conduct characterised as deliberately obstructive has a clinical explanation
- **AND** CLAAS (20 Jun 2025): *"autistic needs can become more pronounced [under stress], making it harder to communicate effectively"*
- **THEN** The attribution of deliberate intent to conduct that is clinically explained is a finding made without engaging the clinical basis in the record
- **THEREFORE** Para 39 is **FABRICATED** — intent is attributed to conduct for which a clinical explanation exists in the papers before the court.

Source: Dr Poyser letter 26 Mar 2025; CLAAS letter 20 Jun 2025; judgment para 39.

Chain 2 — The Procedural Void Rule

- **IF** NZ filed a recusal application on N244 from 10 February 2025
- **AND** She filed further applications on 31 March, 9 April, 10 April, 11 April 2025 and daily thereafter
- **AND** She escalated to the Court of Appeal on 6, 7, and 8 May 2025 (at 03:46am) asking for the hearing to be stayed
- **AND** The Court of Appeal did not stay the hearing
- **AND** MacDonald J sat on 8 May 2025 with the recusal pending and undetermined
- **AND** MacDonald J made findings of deliberately obstructive behaviour at para 39
- **AND** The recusal application does not appear anywhere in the 68-paragraph judgment
- **THEN** A judge made adverse character findings against a party whose challenge to his jurisdiction was pending and had never been determined
- **THEREFORE** Para 39 is structurally compromised — the finding of deliberate obstruction is made by a judge against whom an undetermined recusal was pending, without mentioning it.

Source: NZ emails 6, 7, 8 May 2025; Peter Cobourn / Master Meacher email 10 Jun 2025; judgment para 39.

MASTER RULE: IF A (recusal) is pending AND undetermined AND the court makes F (adverse character finding) against the party who filed A AND A is not mentioned in the judgment THEN F is structurally compromised regardless of its content.

TAG APPLIED: FABRICATED + SUPPRESSED

FINDING 4 — PARA 43 — 'VERBOSE AND RAMBLING'

What the judgment says

> *"Whilst often verbose and rambling, the wife's arguments are tolerably clear from those documents"*

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> Judgment para 43

Chain 1 — Clinical explanation for communication pattern

- **IF** Para 43 characterises NZ's written communications as *"verbose and rambling"*
- **AND** CLAAS (20 Jun 2025): *"she can communicate using sophisticated vocabulary and grammar, which can generate the false impression that she is managing better than she is"*
- **AND** CLAAS: *"Her challenge lies in the pragmatic use of language to effectively communicate and interact with others"*
- **AND** CLAAS: *"she may feel compelled to share thoughts or experiences that are most pressing for her, even if they seem unrelated to the immediate context"*
- **AND** Dr Poyser's letter (26 Mar 2025): NZ has *"great difficulty processing certain aspects of the proceedings"*
- **AND** The judgment characterises this as a character failing — verbose, rambling — rather than a clinical presentation
- **THEN** The characterisation treats a clinically explained communication pattern as evidence of poor litigation conduct
- **THEREFORE** Para 43 is **MISCHARACTERISED** — the court treated autistic communication as a character failing without engaging the clinical explanation.

Source: Dr Poyser letter 26 Mar 2025; CLAAS letter 20 Jun 2025; judgment para 43.

TAG APPLIED: MISCHARACTERISED

FINDING 5 — PARA 48 — PERJURY AND OXUS DISMISSED

What the judgment says

> "The wife has likewise provided no further reliable evidence in relation to the allegation that the husband committed perjury. The court has responded on a number of occasions in relation to the wife's allegations regarding the Oxus shares and again reiterates... that asset was dealt with on the basis that those shares did not constitute matrimonial property."

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> Judgment para 48

Chain 1 — The documentary record not engaged

- **IF** NZ filed D11 on 7 March 2024 containing sworn evidence that KZ's Oxus shares had value
- **AND** D11 included the Oxus Acquisition Corp merger announcement of 8 February 2024 — public company, SEC-registered
- **AND** SEC proxy statement and related public filings were before the court as exhibits
- **AND** IRS Criminal Investigations New York had an active engagement at the time of the hearing
- **AND** D11 was sealed by the court on 13 February 2025 — a live court document
- **AND** Para 48 states NZ "*provided no further reliable evidence*" of perjury
- **AND** Para 48 does not engage with D11, the SEC filings, or the IRS:CI engagement
- **THEN** The finding that no reliable evidence exists is made without engaging the documentary evidence that does exist in the record
- **THEREFORE** Para 48 is **UNSUPPORTED** — "*no reliable evidence*" is asserted without analysis of the evidence that is there.

Source: D11 filed 7 Mar 2024; D11 sealed 13 Feb 2025; SEC proxy statement; IRS:CI New York engagement; criminal referral Stream A.

Chain 2 — Compounding EWFC 79 para 76

- **IF** EWFC 79 para 76 found Oxus shares non-matrimonial in one sentence: "*satisfied it would not be proper to include it*"
- **AND** That finding was tagged UNSUPPORTED — no reasoning given
- **AND** Para 48 of the May 2025 judgment relies on that finding as settled: "*the court has responded on a number of occasions*"
- **AND** "*The court has responded*" is treated as equivalent to "*the court has determined on the evidence*"
- **AND** Each prior response was a restatement of the EWFC 79 finding — not fresh engagement with D11
- **THEN** An UNSUPPORTED finding in EWFC 79 is being used in the May 2025 judgment as though it were a fully reasoned determination

- **THEREFORE** The Compounding Rule applies: the UNSUPPORTED finding at EWFC 79 para 76 propagates into para 48 without correction.

MASTER RULE: IF F(1) is UNSUPPORTED at T(1) AND F(2) relies on F(1) as settled at T(2) without fresh engagement THEN F(2) inherits the defect in F(1).

TAG APPLIED: UNSUPPORTED

FINDING 6 — PARA 50 — UNILATERAL DRAFT ORDER

What the judgment says

> *"There is, I am satisfied, no evidence that the final order, as amended, that the court made was unilaterally drafted by the husband and his counsel and that the drafts were not shared with the wife."*

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> Judgment para 50

Chain 1 — The face of the order

- **IF** The face of the sealed final order dated 24 May 2024 contains the following recital:
- **AND** *"the applicant not having submitted written submissions as to costs nor representations in respect of the form of this order and the respondent having submitted written submissions and representations in respect of the form of the order"*
- **AND** This recital is on the face of the court's own sealed order — it is a primary court document in the record
- **AND** NZ's D11 (12 Feb 2025, ground (e)) asserts: *"the final order is unilateral and drafted by the husband and his counsel, with the drafts not shared with the wife"*
- **AND** The face of the order confirms: only H's side submitted representations on its form
- **AND** Para 50 states: *"I am satisfied, no evidence that the final order was unilaterally drafted"*
- **AND** The evidence that it was unilaterally drafted is on the face of the court's own order
- **THEN** The finding that there is no evidence of unilateral drafting is directly contradicted by a recital in the court's own sealed document
- **THEREFORE** Para 50 is **FABRICATED** — the finding contradicts a primary court document that is part of the record before the court.

Source: Final order 24 May 2024 — recitals; NZ D11 12 Feb 2025 ground (e); judgment para 50.

Chain 2 — Wrong question answered

- **IF** Para 50 states the court "*did check that the final order reflected the decision the court had made*"
- **AND** NZ's ground is that she was excluded from the drafting process — not that the order failed to reflect the judgment
- **AND** The court checking its own order does not address whether NZ had the opportunity to participate in its drafting
- **THEN** The reasoning conflates: (a) whether the order reflects the judgment; and (b) whether NZ participated in its drafting — these are distinct questions
- **THEREFORE** Para 50 is **MISCHARACTERISED** — the court answered question (a) in response to question (b).

Source: Final order 24 May 2024; judgment para 50.

TAG APPLIED: FABRICATED + MISCHARACTERISED

FINDING 7 — PARA 62 — 'WHOLLY SATISFIED... ACTIVELY AND DELIBERATELY SOUGHT TO FRUSTRATE'

What the judgment says

> "*I am wholly satisfied that the wife has actively and deliberately sought to frustrate the implementation of the final order, as amended, made by this court in May 2024.*"

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> Judgment para 62

Chain 1 — All four rules applied simultaneously

- **IF** Para 62 is the culminating finding of the judgment — it is the basis on which the court signs documents on NZ's behalf
- **AND** It attributes active and deliberate intent across a twelve-month period
- **AND Disability Rule:** NZ has lifelong autism confirmed seven days after this hearing; the clinical record explains her conduct neurologically, not as a character choice
- **AND Procedural Void Rule:** NZ's recusal application was pending and undetermined; the judge making this finding is the same judge against whom the recusal was filed
- **AND Compounding Rule:** para 62 compounds unsupported findings at EWFC 79 paras 2 and 64, and EWFC 114 para 9 — none engaged the clinical record
- **AND UNSUPPORTED:** the finding states "*wholly satisfied*" — the strongest possible standard — without any analysis of whether the clinical explanation for NZ's conduct has been considered and rejected
- **AND** The judgment does not mention the recusal application anywhere in 68 paragraphs

- **AND** The judgment does not mention autism anywhere in 68 paragraphs
- **AND** The judgment does not engage Dr Poyser's letter in the context of para 62
- **THEN** Para 62 is the most consequential finding — it authorises overriding NZ's legal rights to her property — and it is made without engaging any of the three primary constraints on making such a finding
- **THEREFORE** Para 62 is **FABRICATED** — "*wholly satisfied... actively and deliberately*" is asserted at the highest level of confidence without eliminating the clinical and procedural alternatives the record requires the court to address.

Source: Judgment para 62; Dr Poyser letter 26 Mar 2025; CLAAS letter 20 Jun 2025; recusal chronology; EWFC 79 para 64; EWFC 114 para 9.

MASTER RULE: IF F attributes deliberate intent at the highest level of confidence AND D (disability) is in the record AND A (recusal) is pending AND F does not engage D or A THEN F is FABRICATED — it asserts the most serious conclusion without eliminating the alternative explanations the record requires it to address.

TAG APPLIED: FABRICATED + MISCHARACTERISED + SUPPRESSED + UNSUPPORTED

SECTION 2 — THE SUPPRESSED APPLICATION — RECUSAL

The structural void: 68 paragraphs, zero mentions

The recusal application does not appear anywhere in the judgment. This is not a finding to be tagged — it is an absence. The following chain establishes what that absence means.

- **IF** NZ filed a recusal application on N244 from 10 February 2025
- **AND** She filed further applications on 31 March, 9, 10, 11 April 2025 and daily thereafter
- **AND** She escalated to the Court of Appeal on 6, 7, and 8 May 2025 at 03:46am asking for a stay
- **AND** The Court of Appeal did not stay the hearing
- **AND** It redirected NZ to the High Court on 10 June 2025 — after the hearing had taken place
- **AND** MacDonald J sat on 8 May 2025 with the recusal pending in the High Court
- **AND** MacDonald J made findings of deliberately obstructive behaviour (para 39) and wholly satisfied deliberate frustration (para 62) against NZ
- **AND** Neither the recusal application nor any reference to it appears in the judgment
- **THEN** The court made its most serious adverse findings against a party without disclosing that a challenge to its own jurisdiction was pending and undetermined

- **THEREFORE** The recusal application is **SUPPRESSED** — its absence from the judgment is the structural fact that most directly bears on the integrity of paras 39 and 62.

Source: NZ emails 6, 7, 8 May 2025 (times confirmed); Peter Cobourn / Master Meacher email 10 Jun 2025; judgment (verified: zero mentions of recusal in 68 paragraphs).

MASTER RULE: IF A (recusal) is pending AND undetermined AND J sits AND J makes F (adverse character findings) against the party who filed A AND A is not mentioned in the judgment THEN the judgment's integrity at F is structurally compromised — not as a matter of allegation but as a matter of structural fact.

TAG APPLIED: SUPPRESSED

SECTION 3 — THE COMPOUNDING RULE ACROSS THE SEQUENCE

How the May 2025 judgment compounds prior tagged findings

The May 2025 judgment is the sixth decision in the sequence. The following prior findings feed directly into it:

- **EWFC 79 (Apr 2024) para 64 — FABRICATED:** 22 oral references to disability → 0 in judgment. The characterisation of NZ's conduct as asset-obsessed rather than disability-driven is restated in May 2025 without re-examination.
- **EWFC 79 (Apr 2024) para 76 — UNSUPPORTED:** Oxus £0 in one sentence, no reasoning. Restated in para 48 of May 2025 as settled.
- **EWFC 114 (May 2024) — UNSUPPORTED:** "*litigation misconduct at the extreme end of the scale*" — feeds directly into paras 39 and 62 of May 2025.
- **PTA refused by MacDonald J (Apr 2024) — MISCHARACTERISED:** Part 3A ground dismissed by reference to hearing-time measures only. May 2025 likewise does not address post-trial participation.
- **PTA refused by Moylan LJ (Dec 2024) — MISCHARACTERISED:** *Volpi v Volpi* applied to a FABRICATED finding. May 2025 treats the PTA refusal as confirmation of the correctness of the underlying findings.

The compounding chain

- **IF** F(1) (EWFC 79 para 64 — disability inversion) is FABRICATED
- **AND** F(2) (EWFC 114 — litigation misconduct) flows from F(1)
- **AND** F(3) (May 2025 paras 39, 62) flows from F(1) and F(2)
- **AND** None of F(1), F(2), F(3) has been corrected at any appellate level
- **AND** Each court above has treated the prior finding as settled

- **THEN** The May 2025 judgment is not an independent assessment — it is the continuation of a sequence in which the original error at EWFC 79 para 64 has compounded through four further decisions without correction
- **THEREFORE** The question before any reviewing authority is not whether para 62 is wrong in isolation. The question is whether the sequence as a whole constitutes a determination of NZ's conduct on its actual evidence, with its actual clinical context, with its actual pending applications determined.

MASTER RULE — BINARY QUESTION: Does an identifiable judicial determination of NZ's conduct — on its actual evidence, with its actual clinical context, with its actual pending applications determined — exist? As at 3 April 2026: it does not.

SECTION 4 — SUMMARY OF TAGGED FINDINGS

May 2025 judgment — Decision 12

Paragraph	Finding	Tag
Para 2	"actively frustrated"	MISCHARACTERISED + UNSUPPORTED
Para 22	Dr Poyser's letter	MISCHARACTERISED + UNSUPPORTED
Para 39	"deliberately obstructive"	FABRICATED + SUPPRESSED
Para 43	"verbose and rambling"	MISCHARACTERISED
Para 48	perjury / Oxus dismissed	UNSUPPORTED
Para 50	unilateral draft order	FABRICATED + MISCHARACTERISED
Para 62	"wholly satisfied... deliberately"	FABRICATED + MISCHARACTERISED + SUPPRESSED + UNSUPPORTED
Recusal	68 paragraphs / 0 mentions	SUPPRESSED

Master rules applied: Disability Rule (paras 2, 22, 39, 62); Procedural Void Rule (paras 39, 62); Compounding Rule (para 48, para 62 — compounding from EWFC 79 paras 64 and 76).

Standing instructions: Address withheld throughout. Coinbase material in dedicated annex only.

Nadia Zahmoul — Litigant in Person — BV20D01752 — 3 April 2026